

COMPLETE LEARNING SESSION

Supreme Court - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Supreme Court - Solved Practice Workbook

BASIC MCQS / REMEDIATION

32 original MCQs

Answer rotation: ABCD repeated eight times. Each question contains four substantive option-specific explanations and one unique question-specific Examiner trap.

MCQ 1. Integrated judiciary

Which proposition best describes India's judicial structure?

A. One integrated hierarchy administers both Union and State law. B. Separate federal and State systems end in different apex courts. C. High Courts are administrative branches of the Supreme Court. D. State law is outside Supreme Court interpretation.

Answer: A.

Option explanations:

- **A:** Correct: India has one integrated judicial hierarchy applying Union and State law.
- **B:** Incorrect: the dual federal-State court model is associated with the United States, not India.
- **C:** Incorrect: High Courts possess independent constitutional powers under Articles 214, 226, 227 and 235.
- **D:** Incorrect: State-law questions can reach the Supreme Court through constitutional and appellate routes.

Examiner trap 1: Integrated hierarchy means legal unity, not unitary administrative control.

MCQ 2. Seat under Article 130

Under Article 130, which statement is correct?

A. The Court must sit annually in every State capital. B. The Court sits in Delhi, while the CJI may appoint another place with presidential approval. C. The collegium may permanently shift the seat. D. Parliament must approve each circuit sitting by constitutional amendment.

Answer: B.

Option explanations:

- **A:** Incorrect: Article 130 creates no annual State-capital circuit.
- **B:** Correct: Delhi is the constitutional seat, with a CJI-plus-presidential-approval route for another place.
- **C:** Incorrect: the collegium does not hold the Article 130 location power.
- **D:** Incorrect: Article 130 itself supplies the mechanism; constitutional amendment is unnecessary.

Examiner trap 2: A demand for regional benches is a reform proposal, not proof that Article 130 already mandates them.

MCQ 3. Constitution Bench

Article 145(3) requires at least five judges when the Court decides:

A. every Fundamental Rights petition. B. every appeal from a High Court. C. a substantial question of law as to constitutional interpretation or an Article 143 reference. D. every case in which Union and State governments disagree.

Answer: C.

Option explanations:

- **A:** Incorrect: ordinary Article 32 petitions need not be heard by five judges.
- **B:** Incorrect: High Court appeals commonly go before smaller benches.
- **C:** Correct: Article 145(3) fixes the five-judge minimum for the specified constitutional questions and references.
- **D:** Incorrect: party identity does not itself determine Constitution Bench size.

Examiner trap 3: A constitutional argument is not enough; the interpretive question must be substantial and arise for decision.

MCQ 4. Sanctioned and working strength

Which statement was accurate on the official control date of 7 September 2026?

A. The Constitution permanently fixed 38 judges. B. The 2019 Act still fixed the total at 34. C. Working strength necessarily equalled sanctioned strength. D. Act 14 of 2026 sanctioned 38 including the CJI, while the official roster listed 34 sitting judges.

Answer: D.

Option explanations:

- **A:** Incorrect: Article 124 leaves the number of puisne judges to parliamentary law.
- **B:** Incorrect: the 2019 total was superseded by the 2026 amendment.
- **C:** Incorrect: vacancies can make working strength lower than the statutory ceiling.
- **D:** Correct: the amended ceiling was 38 and the dated official roster contained 34 names.

Examiner trap 4: Always separate statutory ceiling, dated working strength and resulting vacancy count.

MCQ 5. Qualifications

Which person satisfies an express Article 124 qualification route, assuming Indian citizenship?

A. A distinguished jurist in the President's opinion. B. Any advocate with five years' practice. C. Any district judge with three years' service. D. Any legal academic regardless of citizenship.

Answer: A.

Option explanations:

- **A:** Correct: distinguished jurist is an express route, though unused in appointment practice.
- **B:** Incorrect: the advocate route requires at least ten years as a High Court advocate.
- **C:** Incorrect: district-judge service by itself is not the stated Supreme Court route.
- **D:** Incorrect: citizenship of India is mandatory for every route.

Examiner trap 5: The Constitution prescribes no minimum appointment age, but it does prescribe citizenship and professional routes.

MCQ 6. CJI seniority convention

Appointment of the senior-most Supreme Court judge considered fit as CJI is best classified as:

A. a rule inserted by the 99th Amendment. B. a constitutional convention reflected in appointment practice, not express Article 124 text. C. a requirement of the Judges (Inquiry) Act, 1968. D. a decision made by all High Court Chief Justices.

Answer: B.

Option explanations:

- **A:** Incorrect: the 99th Amendment concerned the NJAC and was invalidated.
- **B:** Correct: seniority is convention/Memorandum-of-Procedure practice, historically breached in 1973 and 1977.
- **C:** Incorrect: the 1968 Act concerns investigation for removal, not CJI selection.
- **D:** Incorrect: High Court Chief Justices do not elect the CJI.

Examiner trap 6: Convention may be settled and important without becoming constitutional text.

MCQ 7. Third Judges Case

For a Supreme Court appointment, the 1998 Presidential Reference requires consultation within a collegium comprising:

A. the CJI acting alone. B. the CJI and two senior-most Supreme Court judges. C. the CJI and four senior-most Supreme Court judges. D. the CJI, Law Minister and two eminent persons.

Answer: C.

Option explanations:

- **A:** Incorrect: the institutional opinion cannot be reduced to the CJI's personal view.
- **B:** Incorrect: the two-senior-most formulation is associated with a different stage of collegium evolution.
- **C:** Correct: the Third Judges Case expanded the Supreme Court collegium to the CJI plus four senior-most judges.
- **D:** Incorrect: that mixed composition resembles part of the invalidated NJAC design.

Examiner trap 7: Remember the Supreme Court appointment collegium as five judges in total.

MCQ 8. NJAC boundary

Which statement most accurately describes the 2015 NJAC judgment?

A. It upheld the 99th Amendment but invalidated only rules. B. It held that appointments can never involve any non-judge. C. It converted the collegium into express constitutional text. D. It struck down the 99th Amendment and NJAC Act for damaging judicial independence, without declaring every possible commission unconstitutional.

Answer: D.

Option explanations:

- **A:** Incorrect: both the constitutional amendment and the NJAC Act fell.
- **B:** Incorrect: the holding addressed the enacted design and basic-structure defect, not every hypothetical commission.
- **C:** Incorrect: the collegium remains a judicial construction.
- **D:** Correct: SCAORA (2015) restored the collegium because the specific NJAC design impaired judicial independence.

Examiner trap 8: Do not overclaim the judgment as an eternal ban on appointment commissions.

MCQ 9. Removal

A Supreme Court judge may be removed after:

A. each House adopts an address in the same session by the prescribed special majority on proved misbehaviour or incapacity, followed by a presidential order. B. a simple-majority joint sitting. C. a collegium finding of ethical impropriety. D. a Supreme Court Bar Association resolution.

Answer: A.

Option explanations:

- **A:** Correct: Article 124(4) requires the separate-House special-majority address and presidential order.
- **B:** Incorrect: removal has no joint sitting and no simple-majority route.
- **C:** Incorrect: the collegium cannot constitutionally remove a judge.
- **D:** Incorrect: a voluntary association cannot exercise Article 124(4) power.

Examiner trap 9: The Constitution uses 'removal', while public discussion often inaccurately says 'impeachment'.

MCQ 10. Financial independence

Which provision protects a sitting Supreme Court judge's allowances and pension rights from disadvantageous variation after appointment, subject to the Financial Emergency exception?

A. Article 121 B. Article 125 C. Article 129 D. Article 146(3)

Answer: B.

Option explanations:

- **A:** Incorrect: Article 121 restricts parliamentary discussion of judicial conduct.
- **B:** Correct: Article 125 contains the service-condition protection and its constitutional exception.
- **C:** Incorrect: Article 129 concerns court-of-record and contempt power.
- **D:** Incorrect: Article 146(3) charges the Court's administrative expenses on the Consolidated Fund.

Examiner trap 10: Salary expenditure and Court administrative expenditure are protected through related but distinct provisions.

MCQ 11. Temporary judges

Which matching is constitutionally correct?

A. Article 126-retired judge; 127-acting CJI; 128-ad hoc judge. B. Article 126-ad hoc judge; 127-retired judge; 128-acting CJI. C. Article 126-acting CJI; 127-ad hoc judge; 128-retired judge sitting. D. All three concern permanent appointments.

Answer: C.

Option explanations:

- **A:** Incorrect: each Article is shifted to the wrong temporary office.
- **B:** Incorrect: Article 126 does not govern ad hoc judges and Article 128 does not govern an acting CJI.
- **C:** Correct: Articles 126, 127 and 128 respectively address acting CJI, ad hoc judge and retired judge sitting.
- **D:** Incorrect: these are continuity mechanisms rather than permanent Article 124 appointments.

Examiner trap 11: The three Articles differ in trigger, eligible person and consent route.

MCQ 12. Post-retirement practice

Article 124(7) provides that a former Supreme Court judge:

A. cannot hold any public office. B. cannot teach or publish. C. automatically joins an arbitral panel. D. cannot plead or act before any court or authority within India.

Answer: D.

Option explanations:

- **A:** Incorrect: the Constitution does not impose a complete post-retirement public-office ban.
- **B:** Incorrect: academic work is not prohibited by Article 124(7).
- **C:** Incorrect: no automatic arbitral appointment follows retirement.
- **D:** Correct: the textual bar concerns pleading or acting before any Indian court or authority.

Examiner trap 12: The practice bar should not be inflated into a prohibition on every post-retirement assignment.

MCQ 13. Article 131

Article 131 principally confers:

A. exclusive original jurisdiction over specified Union-State or State-State disputes involving a legal right. B. general original jurisdiction over all government contracts. C. automatic jurisdiction over inter-State river-water disputes. D. exclusive jurisdiction over every election petition.

Answer: A.

Option explanations:

- **A:** Correct: both the listed governmental parties and the legal-right issue are essential.
- **B:** Incorrect: ordinary commercial disputes do not become Article 131 cases merely because government is involved.
- **C:** Incorrect: Article 262 legislation may exclude Supreme Court jurisdiction over river-water disputes.
- **D:** Incorrect: Article 71 separately governs President and Vice-President election disputes.

Examiner trap 13: Test parties, legal right and exclusions before calling a dispute federal original jurisdiction.

MCQ 14. Articles 32 and 226

Which comparison is correct?

A. Article 32 covers every legal right and Article 226 only Fundamental Rights. B. Article 32 is itself a Fundamental Right; Article 226 is wider in purpose because it also reaches other legal rights. C. Article 226 has nationwide territorial reach while Article 32 is State-bound. D. High Courts cannot issue quo warranto.

Answer: B.

Option explanations:

- **A:** Incorrect: the subject-matter scopes are reversed.
- **B:** Correct: Article 32 guarantees FR enforcement while Article 226 extends to other legal purposes.
- **C:** Incorrect: the Supreme Court's reach is national; High Court jurisdiction is territorially connected.
- **D:** Incorrect: High Courts may issue all five constitutional writs.

Examiner trap 14: Wider in purpose and wider in territory are different comparisons.

MCQ 15. Transfer of cases

Article 139A enables the Supreme Court, in the specified circumstances, to:

A. appoint additional High Court judges. B. adjudicate judicial misconduct complaints. C. withdraw cases involving the same or substantially the same substantial legal questions and transfer cases between High Courts. D. change the principal seat without presidential approval.

Answer: C.

Option explanations:

- **A:** Incorrect: additional High Court judges are governed by Article 224.
- **B:** Incorrect: Article 139A is not an ethics mechanism.
- **C:** Correct: it coordinates overlapping substantial legal questions and inter-High-Court transfers.
- **D:** Incorrect: Article 130 governs the Supreme Court's seat.

Examiner trap 15: Separate Article 139A constitutional transfer from statutory criminal/civil transfer powers.

MCQ 16. Special leave

Article 136 special leave is:

A. a guaranteed appeal after every High Court order. B. limited to civil matters. C. available from Armed-Forces courts without exception. D. an extraordinary discretionary route from courts or tribunals, excluding those constituted under Armed-Forces law.

Answer: D.

Option explanations:

- **A:** Incorrect: no litigant has an automatic Article 136 appeal.
- **B:** Incorrect: the provision is not confined to civil jurisdiction.
- **C:** Incorrect: the Constitution expressly excludes Armed-Forces courts and tribunals.
- **D:** Correct: SLP is broad in source but exceptional in exercise.

Examiner trap 16: Breadth of jurisdiction does not convert discretion into a regular fourth appeal.

MCQ 17. Review

Article 137 authorises the Supreme Court to:

A. review its own judgments or orders subject to parliamentary law and Court rules. B. reopen every dismissed SLP as of right. C. review only advisory opinions. D. transfer every review to a High Court.

Answer: A.

Option explanations:

- **A:** Correct: review is a constitutionally authorised, rule-governed self-correction power.
- **B:** Incorrect: dismissal of an SLP does not create an automatic rehearing.
- **C:** Incorrect: Article 137 is not confined to references.
- **D:** Incorrect: the Supreme Court reviews its own decisions.

Examiner trap 17: Review is narrower than appeal and cannot be argued as a second merits hearing.

MCQ 18. Curative petition

The curative petition recognised in *Rupa Ashok Hurra* (2002) is:

A. a statutory appeal under the CPC. B. an exceptional post-review remedy against gross miscarriage, subject to strict screening. C. an Article 143 reference. D. a remedy available before ordinary review.

Answer: B.

Option explanations:

- **A:** Incorrect: curative jurisdiction was judicially fashioned, not created as a regular statutory appeal.
- **B:** Correct: it is a rare final safeguard after review, especially for grave natural-justice failure or bias.
- **C:** Incorrect: the President does not initiate a curative petition.
- **D:** Incorrect: review ordinarily precedes curative consideration.

Examiner trap 18: Curative relief is not a routine second review.

MCQ 19. Advisory jurisdiction

Which statement about Article 143 is correct?

A. A private party may demand an advisory opinion. B. Every opinion binds future benches exactly like Article 141 precedent. C. The President refers; an Article 143(1) opinion is advisory and the Court may decline to answer. D. The Court may grant deemed assent to legislation through every reference.

Answer: C.

Option explanations:

- **A:** Incorrect: the reference power belongs to the President.
- **B:** Incorrect: an advisory opinion is not an ordinary binding decree.
- **C:** Correct: clause (1) uses a discretionary reporting structure for public-importance questions.
- **D:** Incorrect: the 2025 assent opinion rejected automatic deemed assent under Article 142.

Examiner trap 19: Authoritative constitutional advice remains distinct from binding adjudication.

MCQ 20. Contempt

Which proposition is constitutionally accurate?

A. The 1971 Act creates the whole contempt power. B. Fair criticism always amounts to criminal contempt. C. Parliament may abolish Article 129 by ordinary law. D. Article 129 is the constitutional source; the 1971 Act regulates but cannot extinguish that power.

Answer: D.

Option explanations:

- **A:** Incorrect: constitutional courts possess inherent authority under Articles 129 and 215.
- **B:** Incorrect: criticism must be distinguished from substantial interference with justice.
- **C:** Incorrect: ordinary legislation cannot erase an express constitutional power.
- **D:** Correct: statute structures contempt while constitutional authority remains controlling.

Examiner trap 20: The object is administration of justice, not protection from every reputational injury.

MCQ 21. Article 141

Article 141 means that:

A. the law declared by the Supreme Court binds all courts in India, with ratio and bench strength controlling. B. every factual observation in every order is binding law. C. a smaller bench may overrule a larger bench. D. Parliament is bound as though every judgment amended the Constitution.

Answer: A.

Option explanations:

- **A:** Correct: the binding proposition is the declared law, read through ratio and precedent discipline.
- **B:** Incorrect: obiter and fact-specific observations do not automatically become binding ratios.
- **C:** Incorrect: judicial discipline requires reference to an equal or larger bench.
- **D:** Incorrect: judgments interpret and apply law; they are not constitutional amendments.

Examiner trap 21: Identify the ratio and the authoritative bench rather than citing a case name alone.

MCQ 22. Article 142

The safest statement of Article 142 is:

A. it authorises permanent law-making whenever equity favours it. B. it permits complete-justice orders in a pending cause but cannot violate Fundamental Rights or supplant substantive law. C. it is confined to advisory references. D. it allows any statutory prohibition to be ignored.

Answer: B.

Option explanations:

- **A:** Incorrect: Article 142 is remedial, not a general legislative competence.
- **B:** Correct: Prem Chand Garg and Supreme Court Bar Association supply constitutional and substantive-law limits.
- **C:** Incorrect: the power operates in causes or matters before the Court generally.
- **D:** Incorrect: complete justice cannot become a licence to defeat governing law.

Examiner trap 22: Use 'supplement, not supplant' and avoid calling Article 142 unlimited.

MCQ 23. Article 144

Article 144 requires:

A. only subordinate courts to follow Supreme Court procedure. B. the Union Cabinet to approve every decree. C. all civil and judicial authorities in India to act in aid of the Supreme Court. D. the Court to seek State consent before enforcement.

Answer: C.

Option explanations:

- **A:** Incorrect: the duty is not restricted to subordinate courts.
- **B:** Incorrect: executive approval is not a condition for judicial authority.
- **C:** Correct: Article 144 supplies a constitution-wide assistance obligation.
- **D:** Incorrect: State consent is not the textual trigger.

Examiner trap 23: Article 144 is the implementation bridge, not the source of appellate jurisdiction.

MCQ 24. Article 145

Article 145 primarily concerns:

A. the retirement age of judges. B. federal original jurisdiction. C. the statutory strength of the Court. D. Supreme Court rules of practice/procedure and specified bench requirements.

Answer: D.

Option explanations:

- **A:** Incorrect: retirement at 65 appears in Article 124.
- **B:** Incorrect: Article 131 governs federal original jurisdiction.
- **C:** Incorrect: Parliament fixes strength under the Article 124 statutory framework.
- **D:** Correct: Article 145 includes rule-making and the five-judge constitutional minimum.

Examiner trap 24: Rules require presidential approval, but the President does not decide individual bench composition.

MCQ 25. Judicial review

Which statement best captures judicial review?

A. It tests constitutional validity of legislative and executive action and is part of the basic structure. B. It permits courts to replace any policy they consider unwise. C. It exists only under Article 32. D. It makes every Ninth Schedule law automatically void.

Answer: A.

Option explanations:

- **A:** Correct: review enforces constitutional limits across several provisions and doctrines.
- **B:** Incorrect: legality review does not authorise merits substitution.
- **C:** Incorrect: Articles 13, 226 and other jurisdictional provisions also support review.
- **D:** Incorrect: post-1973 insertion creates reviewability, not automatic invalidity.

Examiner trap 25: Constitutional supremacy differs from judicial policy supremacy.

MCQ 26. Tribunal review

L. Chandra Kumar (1997) held that:

A. tribunals may finally exclude all High Court review. B. tribunal decisions remain subject to Articles 226/227 review, with constitutional judicial review preserved as basic structure. C. every tribunal order goes directly to a Constitution Bench. D. tribunals themselves form the basic structure.

Answer: B.

Option explanations:

- **A:** Incorrect: exclusion of High Court review was the defect rejected.
- **B:** Correct: tribunals supplement rather than replace constitutional courts.
- **C:** Incorrect: ordinary review proceeds through the appropriate High Court, not automatically a five-judge bench.
- **D:** Incorrect: the protected feature is constitutional judicial review, not each tribunal.

Examiner trap 26: Specialised first-instance adjudication and constitutional supervision can coexist.

MCQ 27. PIL standing

S.P. Gupta (1981) is important to PIL because it:

A. abolished the need for legal injury in every case. B. created the National Legal Services Authority. C. widened representative standing for bona fide public-interest claims involving persons unable to approach the Court. D. made every letter a mandatory writ petition.

Answer: C.

Option explanations:

- **A:** Incorrect: PIL relaxes standing; it does not erase justiciability or injury.
- **B:** Incorrect: NALSA rests on later statutory architecture.
- **C:** Correct: the case helped broaden locus standi for disadvantaged groups.
- **D:** Incorrect: epistolary jurisdiction remains judicially screened.

Examiner trap 27: Public interest is a gateway for genuine collective injury, not publicity-interest litigation.

MCQ 28. Judicial legislation

Vishaka (1997) is best understood as:

A. a permanent judicial takeover of workplace regulation. B. a declaration that treaties automatically override statutes. C. a contempt case. D. rights-based interim guidelines in a legislative vacuum, later superseded by the 2013 statute.

Answer: D.

Option explanations:

- **A:** Incorrect: the guidelines expressly operated until legislation.
- **B:** Incorrect: international norms were used consistently with constitutional guarantees, not as an automatic supremacy rule.
- **C:** Incorrect: the case concerned workplace sexual harassment and rights protection.
- **D:** Correct: it is the classic bounded gap-filling example under Article 141.

Examiner trap 28: Defensible judicial legislation is temporary, rights-anchored and yielding to valid statute.

MCQ 29. Recusal

Which proposition best describes Supreme Court recusal practice?

A. The impartiality principle is judicially recognised, but no single exhaustive statutory recusal code compels public reasons in every case. B. A litigant may choose the replacement judge. C. Every allegation automatically disqualifies the judge. D. Recusal is decided by Parliament.

Answer: A.

Option explanations:

- **A:** Correct: natural-justice principles operate through judge-led practice rather than one comprehensive statute.
- **B:** Incorrect: parties cannot select the bench.
- **C:** Incorrect: tactical allegations do not automatically establish reasonable apprehension of bias.
- **D:** Incorrect: Parliament does not decide case-specific recusals.

Examiner trap 29: Balance actual/apparent impartiality against strategic bench-shopping.

MCQ 30. Attorney-General interface

Which Supreme Court-related statement about the Attorney-General is correct?

A. The Attorney-General appoints Advocates-on-Record. B. The Attorney-General has a right of audience in all courts in India and may assist the Supreme Court, but is not the Court's administrative officer. C. The Attorney-General is a member of the collegium. D. The Attorney-General decides Article 131 disputes.

Answer: B.

Option explanations:

- **A:** Incorrect: Advocate-on-Record status is governed by Supreme Court practice rules.
- **B:** Correct: Article 76 and statutory/professional law support the Union's chief legal officer and right of audience.
- **C:** Incorrect: the Attorney-General has no seat in the collegium.
- **D:** Incorrect: adjudication belongs to the Court.

Examiner trap 30: Separate the Union's chief legal adviser from the Court, BCI and SCBA.

MCQ 31. Live streaming

Swapnil Tripathi (2018) is associated with:

A. abolition of open-court hearings. B. mandatory broadcast of every trial without exception. C. recognition and guidelines for live streaming proceedings of constitutional/national importance, subject to safeguards. D. replacement of court records by video archives.

Answer: C.

Option explanations:

- **A:** Incorrect: live streaming extends rather than abolishes open justice.
- **B:** Incorrect: privacy, sensitivity and administration require exclusions and safeguards.
- **C:** Correct: the judgment constitutionalised technology-assisted open-court access for suitable proceedings.
- **D:** Incorrect: audiovisual access supplements the authoritative judicial record.

Examiner trap 31: Open justice supports streaming, but privacy and fair-trial interests still govern exclusions.

MCQ 32. e-Courts reform

Which reform package best addresses Supreme Court access without technological overclaim?

A. Only more livestream cameras. B. Only a higher sanctioned strength. C. Only compulsory virtual hearings. D. e-filing and hybrid access plus physical assistance, translation, legal aid, case management, cybersecurity and stronger High Courts.

Answer: D.

Option explanations:

- **A:** Incorrect: transparency alone does not solve filing, cost or delay.
- **B:** Incorrect: judge numbers cannot by themselves repair procedure and lower-court capacity.
- **C:** Incorrect: compulsory virtual access may exclude litigants with connectivity or disability barriers.
- **D:** Correct: the combined institutional package addresses entry, processing, comprehension, security and apex overload.

Examiner trap 32: Technology is an enabling layer, not a substitute for human assistance and institutional reform.

PYQS AND ANSWER PRACTICE

Answer-writing control

Marks	Maximum length	Minimum viable architecture
10	150 words	thesis -> two mechanisms -> named evidence -> qualification -> verdict
15	250 words	boundary -> 4-5 dimensions -> authority -> counterpoint -> reform/verdict
20	250 words	constitutional map -> operation -> criticism -> reforms -> qualified conclusion

Mandatory paragraph logic: claim -> named evidence -> analysis -> qualification.

Eight audited routed Mains PYQs with model answers

PYQ-M1. 2020 GS-II Q4 - Convergence and divergence of Indian and UK judicial systems

Demand decoding

- "Highlight key points" requires compact comparison, not two separate country descriptions.
- **10 marks | 150 words:** use common method, constitutional divergence and one consequence.

Model answer

Claim: Indian and UK judicial systems share a common-law method but operate under opposite locations of legal sovereignty.

Named evidence: Both use precedent, reasoned judgments, open courts and judicial review of executive legality. India's **Articles 32, 131-136 and 141** place a constitutional and appellate Supreme Court atop an integrated hierarchy. It may invalidate legislation and, under **Kesavananda Bharati (1973)***, constitutional amendments damaging basic structure. The UK Supreme Court is an independent apex court within the UK's distinct legal systems, but parliamentary sovereignty means it ordinarily cannot nullify a Westminster Act; a Human Rights Act declaration of incompatibility does not itself invalidate legislation.

Analysis: Thus convergence lies in adjudicatory craft and rule-of-law control, while divergence lies in constitutional supremacy versus parliamentary sovereignty.

Qualification: UK courts remain powerful in statutory interpretation, common law and executive review; their inability to strike primary legislation does not imply institutional weakness.

Verdict: India has strong-form constitutional review; the UK combines judicial independence with legislative legal supremacy.

Examiner note: The comparison is dimension-based and avoids calling the UK Constitution "unwritten".

Mark/word discipline: 10 marks; target 145-155 words; 3 comparative dimensions and one qualification.

Why this earns marks: The answer compares legal sovereignty by dimensions, uses the correct UK qualification and closes with a precise strong-form-review distinction.

How to improve this answer: In 150 words retain precedent, constitutional supremacy versus parliamentary sovereignty, one Human Rights Act qualification and the final contrast; omit institutional history.

PYQ-M2. 2020 GS-II Q12 - Judicial legislation, separation of powers and public-interest petitions

Demand decoding

- "Justify" requires a defence of bounded gap-filling, followed by the constitutional limit.
- **15 marks | 250 words:** define judicial legislation, explain PIL as vehicle, use at least four named anchors.

Model answer

Claim: Judicial legislation is justified in India when it temporarily fills a rights-threatening legal vacuum; it becomes illegitimate when it substitutes the Court for Parliament.

Named evidence: Articles **32 and 226** empower constitutional remedies, while Article **141** gives binding force to law declared. Relaxed locus standi in **S.P. Gupta (1981)** allowed public-spirited litigants to represent those unable to approach courts. In **Vishaka v. State of Rajasthan (1997)**, the Supreme Court framed workplace-sexual-harassment

guidelines from Articles 14, 15, 19 and 21 and CEDAW, expressly operating until legislation. Parliament's **2013 Act** then occupied the field. Continuing mandamus in **Vineet Narain (1998)** demonstrates how PIL can secure implementation.

Analysis: India's functional separation of powers permits limited overlap where judicial inaction would leave Fundamental Rights without remedy. PIL supplies access; Articles 141/142 supply effective relief.

Qualification: Supreme Court Bar Association (1998)* holds that Article 142 supplements but cannot supplant substantive law. Courts lack legislative fact-finding and democratic accountability, and open-ended supervision can become governance.

Verdict: Judicial legislation is a constitutional bridge across an exceptional vacuum, not a permanent judicial seat in the legislature.

Examiner note: The answer justifies rather than merely describes, and the 2013 statute proves the temporary nature of the bridge.

Mark/word discipline: 15 marks; target 230-250 words; 5 named units, one mechanism and one hard limit.

Why this earns marks: It defines bounded judicial legislation, links PIL to the remedial mechanism and proves the limit through Vishaka (1997), the 2013 Act and SCBA.

How to improve this answer: Compress around legal vacuum, Articles 32/141, Vishaka (1997) and SCBA; explicitly state that statutory enactment displaces the interim judicial norm.

PYQ-M3. 2021 GS-II Q2 - Desirability of greater representation of women in the higher judiciary

Demand decoding

- "Discuss desirability" requires reasons, constraints and a non-tokenistic route.
- **10 marks | 150 words:** equality anchor, legitimacy analysis, pipeline qualification.

Model answer

Claim: Greater representation of women in the higher judiciary is desirable because equality in public institutions strengthens both adjudicatory perspective and democratic legitimacy.

Named evidence: Articles **14, 15 and 16** express the equality commitment. **Justice M. Fathima Beevi** became the first woman Supreme Court judge in **1989**, demonstrating how recent the opening of the apex bench was. A more diverse bench can improve institutional trust, widen deliberative experience and create role models across the Bar and judicial service.

Analysis: "Merit" is produced through access to briefs, senior designation, leadership and visibility. If those pipelines are unequal, formally neutral appointment may reproduce exclusion.

Qualification: Identity does not predetermine a judicial view, and diversity cannot replace competence. Current percentages should not be cited without dated official verification.

Verdict: Reform should widen the feeder pool, publish diversity-aware selection criteria and ensure fair professional opportunity, making representation a component of merit rather than tokenism.

Examiner note: The answer links representation to institutional design and avoids unsupported current numbers.

Mark/word discipline: 10 marks; target 145-155 words; 2 constitutional anchors, one historical fact and one pipeline reform.

Why this earns marks: Equality text, one historical anchor, pipeline analysis and a non-tokenistic reform directly answer desirability rather than merely listing low representation.

How to improve this answer: For 150 words retain Articles 14-16, Fathima Beevi, pipeline inequality and transparent diversity-aware criteria; avoid undated percentages.

PYQ-M4. 2022 GS-II Q1 - Constitutionalisation of environmental problems by the Supreme Court

Demand decoding

- "Discuss with case laws" makes cases the analytical evidence, not decorative names.
- **10 marks | 150 words:** constitutional text, three doctrinal innovations, implementation limit.

Model answer

Claim: The Supreme Court constitutionalised environmental problems by converting ecological welfare from a policy objective into an enforceable dimension of life and dignity.

Named evidence: It read **Article 21** with **Articles 48A and 51A(g)**. **Subhash Kumar (1991)** recognised a pollution-free environment within Article 21. **M.C. Mehta (Oleum Gas Leak, 1987)** evolved absolute liability for hazardous enterprises. **Vellore Citizens (1996)** incorporated precaution, polluter pays and sustainable development; **M.C. Mehta v. Kamal Nath (1997)** applied public trust. **T.N. Godavarman (1996 onward)** used continuing mandamus in forest governance.

Analysis: Rights language enabled standing, judicial review and effective remedies where regulatory failure threatened health and livelihood.

Qualification: Principles require scientific application, and long supervision risks judicial administration. CPCB, State boards, governments and the NGT remain indispensable.

Verdict: Constitutionalisation transformed environmental accountability, but durable protection requires courts to catalyse rather than replace regulators.

Examiner note: Each case is attached to an exact proposition and followed by an institutional limit.

Mark/word discipline: 10 marks; target 145-155 words; 4-5 cases, no case catalogue without analysis.

Why this earns marks: Every environmental case is tied to a doctrine, followed by regulator dependence and an institutional-restraint verdict.

How to improve this answer: Keep Article 21 with Articles 48A/51A(g), three doctrine-case pairs and the regulator limit; cut the longer case catalogue first.

PYQ-M5. 2023 GS-II Q1 - Judicial independence as a prerequisite of democracy

Demand decoding

- "Comment" requires a clear judgment on necessity, then a qualification.
- **10 marks | 150 words:** explain democratic function, safeguards and accountability.

Model answer

Claim: Judicial independence is a necessary, though not sufficient, condition of constitutional democracy because rights and limits are meaningful only when adjudicated without political fear.

Named evidence: Article **32** protects Fundamental Rights; Article **131** provides a neutral federal umpire. Security of tenure under **Article 124(4)**, protected service conditions under **Article 125**, restraint on parliamentary discussion under **Article 121**, contempt authority under **Article 129** and charged expenses under **Article 146** reduce retaliation. **Kesavananda Bharati (1973)*** and the **NJAC judgment (2015)** connect judicial review and independence to basic structure.

Analysis: These safeguards preserve electoral competition, minority rights, federal balance and legality of government.

Qualification: Independence is functional, not immunity. Collegium opacity, recusal, ethics and the gap below removal require transparent accountability.

Verdict: Democracy needs judges independent in deciding and accountable in institutional process; either value without the other damages constitutional trust.

Examiner note: The answer proves why independence matters instead of listing safeguards alone.

Mark/word discipline: 10 marks; target 145-155 words; 3-4 Articles, 2 cases and one accountability qualification.

Why this earns marks: The answer explains democratic function, names structural safeguards and qualifies independence with accountability instead of treating it as judicial privilege.

How to improve this answer: Use Article 32, Article 124(4), Article 121 and the NJAC/basic-structure anchor; add one sentence distinguishing decisional independence from institutional opacity.

PYQ-M6. 2024 GS-II Q14 - Growth of PIL and emergence of a powerful Supreme Court

Demand decoding

- "Explain reasons" and assess power: separate causes of PIL growth from the power verdict.
- **15 marks | 250 words:** origins, remedial instruments, examples, counter-power and qualified judgment.

Model answer

Claim: PIL transformed the Supreme Court into one of the world's most powerful constitutional courts, but the power remains legally bounded and operationally dependent.

Growth evidence: Post-Emergency rights consciousness, relaxed locus standi in **S.P. Gupta (1981)**, epistolary jurisdiction, low-cost Articles **32/226** access and executive/legislative failure opened the Court to prisoners, bonded labourers and vulnerable communities. **Hussainara Khatoon (1979)*** advanced speedy-trial rights; **Vineet Narain (1998)** used continuing mandamus.

Power analysis: PIL combines a broad door with exceptional tools: Article **141** precedent, Article **142** complete justice, Article **129** contempt and basic-structure review of constitutional amendments. Environmental and governance cases therefore produce nationwide norms and monitored remedies.

Qualification: The Court has neither purse nor enforcement service and relies on Article **144** aid. Frivolous petitions, docket displacement and prolonged policy supervision invite an overreach critique. Article 142 cannot violate Fundamental Rights or supplant substantive law.

Verdict: PIL made the Court unusually powerful in rights access and remedy, not sovereign. Its legitimacy depends on evidence, administrable relief, institutional competence and an exit from governance.

Examiner note: "Powerful" is assessed through sources and limits rather than asserted rhetorically.

Mark/word discipline: 15 marks; target 230-250 words; 5 power units, 3 growth causes and 3 limits.

Why this earns marks: It separates causes of PIL growth from sources of judicial power and tests the "most powerful" claim against enforcement and overreach limits.

How to improve this answer: In 250 words use two short subheadings-growth and power-then retain Article 144 dependence and an administrable-remedy conclusion.

PYQ-M7. 2025 GS-II Q11 - Constitutional morality, judicial independence and accountability

Demand decoding

- "Explain" requires defining constitutional morality and applying it to both independence and accountability.
- **15 marks | 250 words:** values, safeguards, accountability gap and synthesis.

Model answer

Claim: Constitutional morality reconciles judicial independence and accountability by demanding fidelity to constitutional role rather than loyalty to either government or corporate judicial interest.

Named evidence: Constitutional morality prioritises rule of law, equality, due process and checks and balances; it was invoked in the Constituent Assembly and developed judicially in cases including **Navtej Singh Johar (2018)** and **Government of NCT of Delhi v. Union of India (2018)**. Independence is secured through Articles **121, 124(4), 125, 129 and 146**, and protected as basic structure in the **NJAC judgment**.

Analysis: These safeguards allow judges to invalidate unlawful majoritarian action. The same morality requires reasoned judgments, consistent recusal, transparent selection criteria, ethical disclosure and fair complaint handling.

Qualification: Removal is an extreme remedy never successfully used against a Supreme Court judge. The **1997 Restatement** and **1999 in-house procedure** are non-statutory, while the **2010 accountability Bill lapsed**. Accountability must not become executive intimidation.

Verdict: Constitutional morality means independence in what a judge decides and accountability in how judicial office is constituted and exercised.

Examiner note: The concept is operationalised through institutions rather than left as an abstract value.

Mark/word discipline: 15 marks; target 230-250 words; definition, 5 safeguards, 4 accountability tools and one warning.

Why this earns marks: The abstract idea of constitutional morality is operationalised through safeguards, ethical process and the gap between in-house correction and removal.

How to improve this answer: Retain a one-line definition, three independence safeguards, three accountability practices and the warning against executive intimidation; drop peripheral case names if compressed.

PYQ-M8. 2025 GS-II Q13 - Collegium evolution and India-USA appointment systems

Demand decoding

- "Critically examine" requires evolution, comparative advantages/disadvantages and a reform verdict.
- **15 marks | 250 words:** do not narrate the Judges Cases without comparison.

Model answer

Claim: India secures judicial insulation at the cost of transparency, while the USA secures visible inter-branch accountability at the cost of partisan politicisation.

Indian evolution: Article 124 uses consultation. **S.P. Gupta (1981)** favoured executive primacy; the **Second Judges Case (1993)*** converted consultation into concurrence and created the collegium; the **1998 Presidential Reference** fixed the Supreme Court collegium at the CJI plus four senior-most judges. The **99th Amendment/NJAC Act** were struck down in **2015** for damaging judicial independence.

India analysis: Judicial primacy limits executive capture and protects basic structure, but opaque criteria, no confirmation hearing, delay and perceived favouritism weaken legitimacy.

USA evidence: The President nominates and the Senate confirms; public hearings expose philosophy and record, while Article III tenure during good behaviour protects later adjudication. Yet partisan voting and ideological vacancies can politicise the Court.

Qualification: Neither system can be transplanted without its wider separation-of-powers context.

Verdict: India should retain decisional insulation while adding a permanent secretariat, published criteria, reasoned resolutions, diversity monitoring and reciprocal processing discipline.

Examiner note: The answer compares institutional trade-offs and ends with India-specific reform, not model shopping.

Mark/word discipline: 15 marks; target 230-250 words; 4 evolution stages, 3 advantages/risks per system and a reform verdict.

Why this earns marks: The answer fulfils every limb: doctrinal evolution, India-USA comparison, costs and a reform verdict grounded in accountable independence.

How to improve this answer: Use a four-stage Judges Cases timeline and a two-column trade-off; preserve the non-transplant qualification and prioritise secretariat, criteria and reasoned resolutions.

Seven audited routed Prelims PYQs

[FACT] Numbering and neutral demands follow the repository's audited local official-paper routing ledgers. A letter is printed only where the final local official Set-A key is held.

PYQ-P1. 2019 Prelims - routed question 46

Verified demand: Removal of Supreme Court judges.

Answer withheld pending official UPSC key.

Answer route: Article 124(4) requires proved misbehaviour or incapacity, a special-majority address in each House and a presidential order; the Judges (Inquiry) Act route begins with 100 Lok Sabha or 50 Rajya Sabha members.

PYQ-P2. 2019 Prelims - routed question 52

Verified demand: Article 142 and constitutional authority.

Answer withheld pending official UPSC key.

Answer route: Article 142 supplies complete justice in a pending cause, but Prem Chand Garg, A.R. Antulay and Supreme Court Bar Association prevent its use against Fundamental Rights, jurisdictional fairness or substantive law.

PYQ-P3. 2019 Prelims - routed question 81

Verified demand: High Court jurisdiction and Supreme Court review.

Answer withheld pending official UPSC key.

Answer route: Article 226 is wider in purpose because it reaches Fundamental Rights and other legal rights; Article 32 is itself a Fundamental Right and remains nationally available for Fundamental Rights.

PYQ-P4. 2021 Prelims - routed question 88

Verified demand: Retired Supreme Court judges and High Court powers.

Answer withheld pending official UPSC key.

Answer route: Article 128 permits a consent-based retired-judge sitting in the Supreme Court; Article 224A is the High Court counterpart; Article 124(7) separately bars former Supreme Court judges from pleading or acting.

PYQ-P5. 2022 Prelims - routed question 11

Verified demand: Contempt of Courts Act and constitutional court powers.

Answer withheld pending official UPSC key.

Answer route: Articles 129 and 215 are constitutional sources; the 1971 Act defines and regulates contempt but cannot extinguish the inherent constitutional power.

PYQ-P6. 2022 Prelims - routed question 12

Verified demand: Advocates and Bar Council powers.

Answer withheld pending official UPSC key.

Answer route: The Bar Council of India is statutory under the Advocates Act, 1961; State Bar Councils enrol advocates, while Court rules separately regulate Supreme Court practice.

PYQ-P7. 2024 Prelims - routed question 83

Verified demand: Writ of Prohibition.

Official Set-A answer: C.

Answer route: Prohibition prevents a lower court or tribunal from continuing without or beyond jurisdiction; certiorari ordinarily quashes a completed decision.

Exactly six original Mains questions with model answers

Original Q1 - 10 marks, 150 words

Explain how Article 131 makes the Supreme Court a federal umpire while preserving jurisdictional limits.

Model answer

Claim: Article 131 makes the Supreme Court a neutral federal umpire through a narrow legal gateway.

Named evidence: It grants exclusive original jurisdiction when the Union and one or more States, opposing Union-State groupings, or two or more States dispute the existence or extent of a legal right. The proviso preserves exclusions linked to specified pre-Constitution instruments, while Article 262 legislation may exclude inter-State water disputes.

Analysis: Direct apex adjudication prevents one constituent government from being forced into another's ordinary courts and authoritatively protects the federal distribution of power.

Qualification: A private party, policy disagreement or political grievance without a legal-right issue does not become an Article 131 dispute.

Verdict: The provision is powerful because it is bounded: it judicialises genuine federal legality without converting the Court into a general political mediator.

Original Q2 - 10 marks, 150 words

How do Article 141 and bench-strength discipline promote legal certainty without freezing constitutional interpretation?

Model answer

Claim: Article 141 creates national legal coherence by binding all courts to the law declared by the Supreme Court.

Named evidence: The binding element is the ratio decidendi, not every factual remark or obiter observation. Judicial discipline requires a smaller bench to follow a larger bench; a coordinate bench that doubts precedent should seek reference rather than overrule it.

Analysis: This hierarchy allows citizens and institutions to plan around stable rules while preventing fragmented constitutional meanings across an integrated judiciary.

Qualification: The Supreme Court is not absolutely bound by its own precedent: review, curative safeguards and a properly constituted larger bench permit principled correction.

Verdict: Article 141 therefore balances certainty with learning-precedent governs until an institutionally competent bench changes the law through reasons.

Original Q3 - 15 marks, 250 words

The collegium protects judicial independence but suffers an accountability deficit. Critically examine.

Model answer

Claim: The collegium secures decisional insulation, but its legitimacy weakens when selection criteria and responsibility remain opaque.

Named evidence: Article 124 originally used consultation. *S.P. Gupta* (1981) favoured executive primacy; *Supreme Court Advocates-on-Record Association* (1993) created judicial primacy; the 1998 Presidential Reference required the CJI plus four senior-most judges for Supreme Court appointments. The 99th Amendment and NJAC Act, 2014 were invalidated in 2015 because the enacted design impaired judicial independence, a basic-structure value.

Analysis: Judicial control reduces the danger that the government rewards compliant judges. Collegial consultation also pools professional knowledge. However, unpublished or thinly reasoned criteria, weak diversity disclosure, delay and perceived favouritism reduce public confidence and blur responsibility between Court and executive.

Qualification: The NJAC ruling did not prohibit every commission model, and criticism of opacity does not justify executive primacy.

Reform: Retain judicial primacy while creating a permanent secretariat, published eligibility and diversity criteria, reasoned resolutions with privacy redactions, fixed processing stages and transparent vacancy data.

Verdict: The constitutional objective is accountable independence: insulation in the decision, transparency in the process.

Original Q4 - 15 marks, 250 words

Article 142 is indispensable for complete justice but dangerous when detached from law. Critically examine.

Model answer

Claim: Article 142 is a remedial power for complete justice in a cause or matter, not a parallel legislative competence.

Named evidence: It allows the Supreme Court to tailor relief where ordinary remedies would leave injustice unresolved. Yet *Prem Chand Garg* (1963) requires consistency with Fundamental Rights. *A.R. Antulay* (1988) shows that complete justice cannot sustain an order that causes jurisdictional unfairness. *Supreme Court Bar Association* (1998) states the controlling formula: Article 142 supplements existing law but cannot supplant substantive law. The 20 November 2025 Article 143 assent opinion rejected rigid judicial timelines and deemed assent under Article 142, while leaving prolonged unexplained inaction reviewable.

Analysis: Flexibility is valuable in complex litigation, restitution and institutional deadlock. But an unbounded equity claim would make outcomes bench-dependent and disturb separation of powers.

Qualification: The 2025 opinion is advisory and issue-specific; it did not generally curtail Article 142 or overrule the April 2025 Tamil Nadu judgment.

Verdict: Article 142 remains legitimate when relief is case-linked, rights-consistent, reasoned and supplementary to law.

Original Q5 - 20 marks, 250 words

Has PIL made the Supreme Court excessively powerful? Analyse through access, remedies and separation of powers.

Model answer

Claim: PIL made the Supreme Court unusually accessible and remedially powerful, but "excessive" depends on whether rights enforcement remains distinct from governance.

Named evidence: *Hussainara Khatoon* (1979) connected Article 21 with speedy trial. *S.P. Gupta* (1981) widened representative standing for those unable to approach courts. Epistolary jurisdiction reduced formality, while *Vineet Narain* (1998) illustrates continuing mandamus. Article 141 gives declared law national reach and Article 142 enables complete justice.

Analysis: These tools opened constitutional courts to bonded labourers, under-trials and environmentally affected groups; they also enabled monitoring where executive inertia made a one-time order ineffective. The same design can overload the docket, reward publicity litigation and turn judges into continuing administrators lacking budgetary or technical capacity.

Named boundary: *Vishaka* (1997) is defensible gap filling because its workplace safeguards were rights-based, temporary and superseded by the 2013 statute. Article 142 remains supplementary, not supplanting.

Qualification: The Court has neither purse nor sword and depends on executive compliance; High Courts under Article 226 remain central to access.

Verdict: PIL created a powerful constitutional court, not an unlimited one. Bona fide standing, evidence, administrability, sunset points and deference outside rights-threatening vacuums preserve legitimacy.

Original Q6 - 20 marks, 250 words

Judicial independence is a prerequisite of democracy, but accountability and access determine its legitimacy. Evaluate and suggest reforms.

Model answer

Claim: Judicial independence is necessary because only an insulated court can enforce rights, review power and umpire federal conflict; it is insufficient unless institutional conduct is accountable and remedies are accessible.

Named evidence: Articles 121, 124 and 125 protect conduct discussion, tenure and service conditions; Articles 129 and 146 protect authority and administration; Article 50 directs separation. *Kesavananda Bharati* (1973) preserves constitutional supremacy, and the NJAC judgment (2015) treats judicial independence as basic structure.

Analysis: These safeguards reduce retaliation by political branches. Yet the extreme Article 124(4) removal threshold leaves a gap below removal. The 1997 Restatement, 1999 in-house procedure, recusals, asset disclosure and collegium resolutions are important but largely non-statutory or unevenly reasoned. Pendency, cost, language and digital exclusion can make formal independence irrelevant to ordinary litigants.

Qualification: External control may become political pressure; complete self-regulation may become opacity.

Reforms: Establish a permanent appointments secretariat, published criteria, reasoned recusal practice, fair graded complaints procedure, timely vacancy processing, stronger High Courts and legal aid, disciplined SLP admission, case-flow management, translation, accessible e-filing and privacy-secure hybrid hearings.

Verdict: Democracy needs independent decisions, accountable process and practical access-the three are complements, not rivals.